meat food products thereof are prepared or handled.

§ 279.3 *Affections requiring condemnation on ante-mortem or post-mortem inspection; glanders and dourine suspects.* (a) All horses found upon either ante-mortem or post-mortem inspection or examination to be affected with strangles, purpura hemorrhagica, azoturia, infectious equine encephalomyelitis, toxic encephalomyelitis (forage poisoning), infectious anemia (swamp fever), dourine, acute influenza, generalized osteoporosis, glanders, farcy, or other malignant disorder, acute inflammatory lameness or extensive fistula, shall be condemned.

(b) Any horse which is suspected on ante-mortem inspection of being infected with glanders shall be tested with mallein; and any horse which on physical examination is suspected of being affected with dourine shall be held for further examination or for such test as the chief of division may prescribe.

§ 279.4 *Horse carcasses, meat and meat food products thereof; marking and labeling.* All horse carcasses, parts of carcasses, meat and meat food products thereof shall be conspicuously labeled, marked, branded, or tagged "horse meat" or "horse-meat product." Only green ink shall be used in branding horse meat and horse-meat product with the mark of inspection.

§ 279.5 *Horse meat or meat food products thereof; domestic meat labels.* The domestic meat labels for horse meat or meat food products thereof shall be printed on paper, light green in color. The legend composing the body of each label shall be as follows: "The horse meat or meat food product thereof contained herein has been U. S. inspected and passed by Department of Agriculture," and in lieu of the phrase "domestic meat label" there shall be printed thereon the phrase "domestic horse meat or horse-meat product."

§ 279.6 *Export horse meat and horse-meat product; stamps and certificates.* Numbered stamps and certificates printed on paper light green in color, to be known as export horse-meat stamps and certificates, shall be issued to identify all horse meat and meat food products thereof packed for export. Such stamp or stamps and certificate shall be issued for each consignment of horse meat or meat food product thereof forwarded from the United States.

§ 279.7 *Horse-meat certificates for Norway.* In accordance with the regulations of Norway, export certificates for horse meat or horse-meat product exported from the United States to Norway are required to be visaed by Norwegian consuls in the United States.

§ 279.8 *Certification of horse meat for The Netherlands.* Inspectors will issue Form FDA 412–9 (superseding M. I. 169) for horse meat and horse-meat product destined to The Netherlands, in addition to the export horse-meat certificates.

§ 279.9 *Applicability of meat inspection regulations to horse meat and meat food products thereof.* All the provisions of the other regulations in this subchapter unless specifically inapplicable, are hereby made applicable to the inspection and handling of horse meat and meat food products thereof and the animals from which they are derived.

ASHLEY SELLERS,
Acting Administrator.

MARCH 24, 1945.

[F. R. Doc. 45-4777; Filed, Mar. 24, 1945; 3:38 p. m.]

TITLE 22—FOREIGN RELATIONS

Chapter I—Department of State

Subchapter B—The Foreign Service

[Foreign Service Regs. S-2]

PART 112—INTERCOURSE WITH FOREIGN GOVERNMENTS

REPRESENTATION OF FOREIGN INTERESTS

Pursuant to the authority vested in me by R.S. 161 (5 U.S.C. 22); by Executive Order 9452 of June 26, 1944 (9 F.R. 7183), as amended by Executive Order 9514 of January 18, 1945 (10 F.R. 771); and by Executive Order 9521 of February 13, 1945 (10 F.R. 1991), § 112.3 is amended and §§ 112.4, 112.5 and 112.6 are added as set forth below.

§ 112.3 *Representation of foreign interests; general nature of function.* The representation of foreign interests is essentially friendly mediation on the part of one power (generally known as the "protecting power") in behalf of nationals or other interests of a second power (generally known as the "represented power") within territory subject to the sovereignty or control of a third power (which for convenience is referred to in these regulations as the "governing power"). While the representation of foreign interests involves primarily the exercise of good offices, it has become sufficiently formalized to permit of distinction between the occasional exercise of informal good offices and the more comprehensive forms of representation. The representation of foreign interests assumes particular importance in time of war, when a neutral power undertakes in behalf of a belligerent power the care and protection of its interests within the territory of an opposing belligerent power. The representation of the interests of a foreign power at war with the country to which a Foreign Service officer is accredited or assigned calls for the exercise of special care in order to maintain his position as an officer of a neutral power whose interests it is his primary duty to conserve. The representation of foreign interests is not necessarily associated with a state of war, however, and may occur as a result of a severance of diplomatic relations or merely because the represented power chooses to withdraw, partially or fully, or not to establish, its own diplomatic or consular representation within the area where the representation of its interests is undertaken by a protecting power.

§ 112.4 *Assumption of representation.* Except in extreme emergencies, American diplomatic and consular officers should undertake the representation of foreign interests only if specifically authorized by the Department of State to do so. A power seeking representation of its interests in a specified area by the United States generally addresses to the United States Government through the customary diplomatic channel a formal request to that effect. If the United States Government accedes to the request, the Department of State issues appropriate instructions to the American diplomatic and consular officers concerned. If requested by a diplomatic or consular officer of another power to undertake the representation of its interests within the country to which he is assigned, an American diplomatic or consular officer should suggest in reply that his colleague's government address the request to the United States Government through the customary diplomatic channel. He should at the same time report the matter fully to the Department of State, which if convinced of its urgency will usually authorize the provisional assumption of such representation pending the receipt of a formal request. The report to the Department should include information with respect to the following points:

(a) The form of representation requested;

(b) The specific area in which representation would be exercised;

(c) The origin of the request (whether made at the direction of the power that would be represented, or upon the initiative of its diplomatic or consular officer making the request).

If representation has been undertaken without advance authorization, a detailed report, including the information specified above and a full explanation of the extreme emergency deemed sufficient to justify such action, should be submitted immediately.

§ 112.5 *Restrictions on diplomatic and consular officers in representing foreign interests.* Diplomatic and consular officers of the protecting power are not considered to be officers of the represented power. They report to and receive instructions from their own government only, which communicates to the represented power reports received, and ascertains its wishes concerning services to be performed, in connection with the representation of its interests. Diplomatic officers of the protecting power are not accredited to the governing power in the capacity of diplomatic officers of the represented power, and consular officers of the protecting power do not receive from the governing power exequatur as consular officers of the represented power. American diplomatic and consular officers are expressly prohibited from performing any duty for a foreign government that involves the acceptance of an office. Since they cannot under the Constitution hold commissions as officials of the represented power, they should not display its coat of arms or its flag, nor employ its seal or the seal of any of its diplomatic or consular offices, in connection with the representation of its interests.